

# Sri Sreedhara H L vs Smt Manasi S H on 5 March, 2018

**Author: B M Shyam Prasad**

**Bench: B M Shyam Prasad**

- 1 -

MFA.No.2937/2016

IN THE HIGH COURT OF KARNATAKA AT BENGALURU

DATED THIS THE 5TH DAY OF MARCH 2018

PRESENT

THE HON'BLE MR. JUSTICE H.G.RAMESH

AND

THE HON'BLE MR. JUSTICE B.M.SHYAM PRASAD

MISCELLANEOUS FIRST APPEAL NO.2937/2016 (FC)

BETWEEN:

SRI SREEDHARA H.L  
S/O SRI LINGAPPA H.S  
HINDU, AGED ABOUT 46 YEARS  
RESIDING AT NO.27, 1ST FLOOR  
SAMPIGE ROAD, DHANALAKSHMI LAYOUT  
VIRUPAKSHAPURA, VIDYARANYAPUR (P)  
BANGALORE -560 097

... APPELLANT

(BY SRI R NAGENDRA NAIK, ADVOCATE)

AND:

SMT. MANASI.S.H  
W/O SREEDHAR H.L  
HINDU, AGED ABOUT 43 YEARS  
RESIDING AT NO.13, THARALABALU ENCLAVE  
S.B.T. LAYOUT, B.B. ROAD  
YELAHANKA, BANGALORE-560 064

...RESPONDENT

(BY SRI MANJUNATH, ADVOCATE)

THIS MFA IS FILED UNDER SECTION 28 OF THE HINDU  
MARRIAGE ACT 1955 R/W SECTION 19(1) OF THE FAMILY  
COURTS ACT 1984, AGAINST THE JUDGMENT AND DECREE  
DATED 04.03.2016 PASSED IN MC.NO.1521/12 ON THE FILE OF  
THE VI ADDITIONAL PRINCIPAL JUDGE, FAMILY COURT,

BENGALURU, DISMISSING THE PETITION FILED UNDER SECTION 13(1)(ib) & (iii) OF THE HINDU MARRIAGE ACT.

-2-

MFA.No.2937/2016

THIS MFA COMING ON FOR ADMISSION, THIS DAY,  
H.G.RAMESH J., DELIVERED THE FOLLOWING:  
JUDGMENT

H.G.RAMESH, J. (Oral):

1. Heard. In the interest of justice, the appeal is restored to file. I.A.Nos.1 & 2 of 2018 are allowed accordingly.

2. Learned Counsel on both sides submit that the appellant and the respondent have been living separately since 12 years and that they have not been able to live together and that they have mutually agreed that the marriage should be dissolved.

3. An application has also been filed to waive the statutory period provided under Section 13B(2) of the Hindu Marriage Act, 1955 ('the Act' for short). We have examined the application in the light of the law laid down by the Hon'ble Supreme Court in Amardeep Singh v. Harveen Kaur, [(2017) 8 SCC 746]. Having regard to the facts of the case, we accept the application and waive the statutory period provided under Section 13B(2) of the Act.

I.A.No.3/2018 is allowed accordingly.

4. Learned Counsel on both sides submit that the parties have arrived at a settlement as per the compromise petition dated 28.02.2018. They submit that the appeal may be disposed of in terms of the compromise petition in modification of the judgment and order dated 04.03.2016 passed by Court of VI Additional Principal Judge, Family Court, Bengaluru in M.C.No.1521/2012.

5. The compromise petition reads as under:

"COMPROMISE PETITION UNDER SECTION 13-B OF HINDU MARRIAGE ACT, 1955 R/W ORDER XXIII RULE 3 OF CPC The appellant and the respondent beg to state as follows:

1. The appellant has preferred the above Miscellaneous First Appeal being aggrieved by the Judgment and decree dated 04/03/2016 passed by the learned VI Addl. Prl. Judge, Family Court, Bangalore in MC No.1521/2012 dismissing the petition filed by the appellant for divorce on the ground of desertion and cruelty.

2. The marriage between the appellant and the respondent was solemnized on 17/05/1999 at Gundi Mahadevappa Kalyana Mantapa, Davanagere City. The appellant and the respondent stayed together in Basaveshwaranagr, Bangalore from

July 1999 to August 2003. The appellant and the respondent led happy marital life for a few months and out of the wed-lock female child by name Kumari Ninada was born on 25/12/2000. The appellant and the respondent could not live together and lead happy marital life on account of incompatibility between the appellant and the respondent and they have been living separately since the year 2006 and Kumari Ninada, the daughter of appellant and the respondent has been residing with the respondent since 2006. The relationship between the appellant and the respondent as husband and wife has irretrievably broken down.

3. All attempts made by elders, well-wishers, friends of the appellant and the respondent to reconcile and make the marriage between the appellant and the respondent workable were in vain.

4. On the complaint lodged by the respondent before the Yelahanka Police Station, Bangalore, the FIR registered against the appellant and the others for offences punishable under Sections 494, 498-A, 420 R/w 34 of IPC in Cr.No.293/2011. The jurisdictional police after investigation have filed charge sheet against the appellant, his parents and his 2nd wife for offences punishable under Sections 494, 498-A, 420 R/w Section 34 of IPC in C.C.No.14661/2012 on the file of the learned 44th Additional Chief Metropolitan Magistrate, Bangalore.

5. During the pendency of the above appeal and Criminal case before the learned 44th ACMM, Bangalore and as per the intervention of well-wishers from both sides, the appellant and respondent have agreed to settle their disputes amicably on the following terms and conditions to this Compromise petition:

(i) The appellant and respondent have mutually agreed that their marriage should be dissolved by a decree of divorce by mutual consent.

(ii) The appellant has given a sum of Rs.10,00,000/-

(Rupees Ten Lakhs only) as a permanent alimony to the respondent in C.C.No.14661/2012 on the file of the learned 44th Additional Chief Metropolitan Magistrate, Bangalore & the respondent has accepted the amount and mutually agreed that there will be no further claim for maintenance.

(iii) The appellant has this day paid a sum of Rs.10,00,000/- (Rupees Ten Lakhs only) through Demand Draft bearing No.953454 dated 26/2/18 drawn on S.B.I. Malleshwaram Bangalore towards educational expenses of their minor daughter Kumari Ninada, who is now aged about 17 years. The respondent shall keep the said amount in a fixed deposit in a Nationalised Bank and use the said amount for educational and other incidental expenses for their daughter.

(iv) The respondent shall withdraw C.C.No.14661/2012 pending on the file of learned 44th ACMM, Bangalore.

(v) The appellant and the respondent have jointly, voluntarily and without any coercion from whomsoever or fear have mutually agreed to dissolve their marriage by a decree of divorce by mutual consent.

(vi) The appellant and the respondent have no mutual claim against each other either at present or in future.

(vii) There is no collusion or coercion or compulsion between the appellant and the respondent and they have voluntarily out of their own free will and volition have mutually agreed to grant a decree of divorce to dissolve their marriage between them solemnised on 17/05/1999 at Gundi Mahadevappa Kalyana Mantapa, Davanagere City.

WHEREFORE, the appellant and respondent pray that this Hon'ble Court be pleased to allow this compromise petition and pass an order dissolving the marriage between the appellant and the respondent solemnised on 17/05/1999 at Gundi Mahadevappa Kalyana Mantapa, Davanagere City by mutual consent in the interest of justice.

Sd/-  
ADVOCATE FOR APPELLANT  
Sd/-  
ADVOCATE FOR RESPONDENT.

Sd/-  
APPELLANT  
Sd/-  
RESPONDENT

VERIFICATION

We, the appellant and the respondent herein in the above appeal do hereby declare that what is stated in the above Compromise Petition are true and correct to our best knowledge, information and belief.

BANGALORE  
DATE : 28/02/2018

Sd/-  
APPELLANT  
Sd/-  
RESPONDENT "

6. As prayed for by the learned Counsel for the parties, the appeal is disposed of in terms of the compromise petition in modification of the judgment and order dated 04.03.2016 referred to above which is impugned in this appeal. The marriage between the appellant and the respondent solemnised on 17.05.1999 at Davanagere City shall stand dissolved. Registry to draw a decree in terms of the compromise petition.

Appeal disposed of.

Sd/-

JUDGE Sd/-

JUDGE Psg\*